

Court No. - 21

Case :- WRIT - C No. - 5880 of 2018

Petitioner :- Mohd. Rafi

Respondent :- State Of U.P. Through Secretary Home, Govt Of U.P At Lucknow And Another

Counsel for Petitioner :- Ankit Gaur,Deepak Kumar Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Heard learned counsel for the petitioner.

Petitioner is disputing the correctness of the bill, which is sought to be recovered from him as arrears of land revenue.

Shri Pranjal Mehrotra appearing for the respondent-corporation points out that under Clause 6.5 of the Electricity Supply Code, 2005, petitioner has a remedy of approaching the Executive Engineer, in case, he doubts the correctness of the bill.

Since the petitioner has a statutory remedy available under the Electricity Supply Code, we are not inclined to interfere in the matter and thus relegate the petitioner to avail the remedy provided under Clause 6.5.

In view of above, the petitioner may make an application before the concerned authority along with a certified copy of this order within a period of three weeks from today and, in case, any such application is made, the authority shall proceed to consider and decide the same in accordance with law by a reasoned and speaking order within a further period of four weeks from the date of making of such application.

For a period of seven weeks or till the decision on the application to be made by the petitioner, whichever is earlier, recovery proceedings against the petitioner, no coercive action shall be taken against the petitioner in pursuance to the impugned recovery citation.

Writ petition, accordingly, stands disposed of.

Order Date :- 16.2.2018

VKS